

Justification for an Exception to Fair Opportunity or to Use Brand-Name Restriction

Is this a brand-name justification? ☐ Yes ☒ No

Is this a Bridge Action as defined in the AF Bridge Action Reduction Plan? ☐ Yes ☒ No

Contracting Activity: AFLCMC/WIIK

Purchase Request / Local ID Number: TBD

Program Name (and Program Element, if applicable): Speed Loader Agile Pod (SLAP)

Estimated Cost/Price of the Order (including options): [REDACTED]

Type Program (see DAFFARS 5302.101 for definitions): ☒ PEO Program ☐ Operational ☐ Enterprise

Type of Determination: ☒ Individual ☐ Class Expires: [click and select]

Fair Opportunity Exception: FAR 16.505(b)(2)(i) (Check the applicable subparagraph below.)

☐ (A) ☒ (B) ☐ (C) ☐ (D) ☐ (E) ☐ (F) ☐ (G) Check this box to display the FAR 6.302 exceptions.

[Click here for instructions to complete the boxes below.](#)

(1) Contracting Activity:

The contracting activity for this Fair Opportunity Exception is the Air Force Life Cycle Management Center (AFLCMC), Medium Altitude UAS Division - Special Projects (WIIK).

(2) Nature and/or description of the action being approved:

This Individual Fair Opportunity Exception (FOE) will support a Delivery Order for the production, modernization and sustainment of the Speed Loader Agile Pod (SLAP) in support of United States Special Operations Command (USSOCOM), Program Executive Office - Fixed Wing (PEO-FW). An order will be placed with Systima Technologies Inc. (Systima), Seattle, WA, 63134-1939, CAGE 1YTD9, under the competitively awarded Eglin Wide Agile Acquisition Contract (EWAAC), FA8656-21-D-A056. The total estimated cumulative value for this acquisition should not exceed [REDACTED] funded with a mix of Department of War (DoW) Procurement, Operations & Maintenance, and RDT&E Appropriations. The primary production efforts will include procurement of 40 SLAP, ancillary materials, spares, and shipping containers. The primary modernization efforts will [REDACTED]

[REDACTED] are required for increased performance, reliability, maintainability, and cost efficiency. [REDACTED] are required for [REDACTED] and [REDACTED]

[REDACTED] These modernization efforts will [REDACTED]

[REDACTED] Once fielded, the enhanced SLAP pods will need to be sustained.

The anticipated contract types for this effort will be Firm Fixed Price, Cost Plus Fixed Fee and Cost Reimbursable. The total dollar amount for this new Delivery Order is based on the supporting independent government cost estimate (IGCE) and proposed costs for similar efforts and contracts. The total period of performance will be forty-eight (48) months, including option periods to support continued requirements.

It was determined by the acquisition team that utilizing the EWAAC Multiple Award IDIQ is in the best interest of the Government. The EWAAC IDIQ offers a streamlined process for procuring armament equipment, production, and support capabilities. EWAAC provides a direct procurement solution for the SLAP requirement and has been determined to be the most appropriate contract vehicle for the SLAP requirement.

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(3) Description of the supplies/services required to meet the agency's needs:

The effort will include production of pods and procurement of ancillary materials, spares, and shipping containers for the pods. This effort will also include the tasks necessary to establish a depot-level (D-Level) capability to address any damage to a pod that cannot be accomplished at the field or organizational-level of repair (O-Level). SLAP has a modular design for adaptability to changing technologies and mission sets; therefore, routine RDT&E will be needed to maintain rapid integration of capabilities for new technologies and [REDACTED]. Examples of RDT&E efforts include enhancements to [REDACTED].

[REDACTED] is being pursued under the current contract to improve performance, reliability, maintainability, and reduce costs. SCS enhancements will be required under this contract for [REDACTED]. The [REDACTED] will require a design review and delta environmental qualification test as part of this contract prior to incorporation into production.

It is anticipated that 40 pods will be purchased over a 4-year contract period, totaling [REDACTED] in expenses. This effort is related to the armament mission due to the nature of the capabilities delivered by the SLAP pod which allows for the [REDACTED] and involves engineering activities for the modification and testing of an existing weapon system. This action is within the ordering period of the basic contract, is within the total contract ceiling, and falls within the scope of the EWAAC contract scope, as determined by review from AFLCMC/EBX, the owner of the EWAAC IDIQ. The EWAAC statement of work specifically details relevant armament criteria listed below:

5.2 Armament/Weapons Development. Examples of required activities are:

5.2.1 Perform trade space and capabilities studies in fielding and supporting armament systems.

5.2.2 Perform design and engineering development in fielding and supporting armament systems.

5.2.3 Perform prototyping and experimentation activities in fielding and supporting armament systems.

5.2.4 Perform production and deployment activities such as manufacturing planning and fabrication of armament systems.

5.2.5 Perform operations and support functions such as system installation, integration (e.g., component / subsystem / system, manufacturing, aircraft, laboratory, or other levels of integration), training, and integrated logistics support of armament systems.

(4) Identification of the exception to fair opportunity and the supporting rationale:

Federal Acquisition Regulation (FAR) 16.505(b)(1)(i) requires the Contracting Officer to provide each awardee under a multiple award contract fair opportunity to be considered for each order exceeding \$15,000 unless a statutory exception applies. The exception that precludes the fair opportunity process for this acquisition is FAR 16.505(b)(2)(i)(B): "Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized." A Sources Sought was conducted among over 300 vendors on the EWAAC IDIQ (FA8656-21-D-A056), with a closing date of October 13, 2025, which received only one response from a capable vendor, Systima.

SLAP is a highly specialized and unique system designed specifically for integration onto the Medium Altitude

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Long Endurance-Tactical (MALET) [REDACTED]

Prior acquisitions have eventually led to the aforementioned development of this specialized supply unique to the MALET MQ-9. AFSOC submitted a requirement for a [REDACTED] over the operational flight profile of the MALET MQ-9. Through Broad Area Announcement No. BAA-2014-0006-RQKPC, Call 003, AFRL competitively awarded FA8650-18-C-2808, in which Systima was subcontracted under the University Dayton Research Institute (UDRI), for the development of a podded solution to demonstrate this capability. This effort incorporated [REDACTED]. The resulting collaboration became known as the Speed Loader Agile Pod (SLAP). The SLAP design is unique to this requirement as [REDACTED]

[REDACTED] AFRL and Systima worked with General Atomics to perform initial SLAP fit checks and an airworthiness analysis / feasibility study using a MQ-9 Common Weapons Pylon (CWP) and a simulated operational environment. They have demonstrated the concept and advanced SLAP to a [REDACTED]. AFRL has transitioned this capability to SOCOM to finalize development, testing, and fielding for AFSOC. The acquisition for this work was awarded in September 2023 directly to Systima using an FOE Justification under the EWAAC IDIQ. The contract transferred to Army Contracting Command - Redstone Arsenal (W31 P4Q-25-F-0062) in March 2025. The subject acquisition would be the third contract involving Systima since 2018 to field a more enhanced SLAP to [REDACTED]

Based on the Sources Sought Responses, historical data and market research, Systima is determined to be the only contractor capable of successfully meeting the requirements of this acquisition because of the contractor's technical knowledge, experience and skills needed to timely produce these enhanced specialized pods and procure ancillary materials, spares, and shipping containers for the pods.

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(5) Contracting Officer's determination that the anticipated cost to the Government will be fair and reasonable:

The Contracting Officer will ensure the overall cost to the USAF will be fair and reasonable prior to issuance of any contract action. Pursuant to 10 U.S.C. 2304(c)(1) authority and in accordance with FAR 15.403-4, the contractor will be required to provide cost and pricing data (including certified when required) to be used in supporting the Medium Altitude UAS Division's evaluation of the proposed cost. The proposed skill mix of labor, labor hours, type and quantities of material, other direct cost, direct and indirect rates, and profit/fee will be negotiated by the Medium Altitude UAS Division based on recommendations from the Defense Contract Audit Agency, Defense Contract Management Agency, and expert technical personnel supporting the program. The contract prices will be negotiated in accordance with the procedures in FAR part 15 and/or 16.5 to allow the Contracting Officer to ensure the ultimate cost/price to the USAF is fair and reasonable.

(6) Other facts supporting the justification:

In addition to the unique and specialized nature of SLAP and Systima's history in its development, as described in section (4), the Government has invested significant funding and time on these efforts that would be lost using a source other than Systima. The prototype SLAP effort was conducted by the Air Force Research Lab (AFRL) with Systima. AFRL invested [REDACTED] developing SLAP [REDACTED] which was the required maturity for transition. AFLCMC/WIIZ was tasked to further mature, qualify, integrate, and field the SLAP capability. WIIZ conducted market research for this effort and Systima was determined to be the only responsible vendor capable of continuing the SLAP effort. WIIZ invested an additional [REDACTED] with Systima to mature, qualify, integrate, and field the SLAP capability. Given the time and expense invested in SLAP to date, the Government estimates it would take at least [REDACTED] for another vendor to achieve the same level of capability and maturity. This estimate could potentially be more when learning curve is considered.

(7) Actions the agency may take to remove or overcome any barriers to increasing fair opportunity before any subsequent acquisition for the supplies or services:

USSOCOM has and will continue to monitor industry and emerging technologies and will pursue competition when a viable competitor can provide [REDACTED]

[REDACTED] More specifically, USSOCOM has monitored industry and emerging technologies through the Special Operation Forces (SOF) Week. SOF Week is a venue through which SOCOM holds a conference for special operation forces, jointly sponsored by the U.S. Special Operations Command and the Global SOF Foundation. Held annually in Tampa, Florida, the event attracts defense and security professionals from various sectors, including military, government, and non-profit organizations. It features an exhibition hall, keystone speakers, seminars and demonstrations. The event fosters collaboration, innovation, and excellence, showcasing the cutting-edge capabilities and strategies that define modern special operations. The event allows all contractors to bring innovations to the forefront to promote competition. This is an annual event which will allow continuous monitoring of other Contractors who could perform this work.

(8) Program Manager's certification that supporting data is accurate and complete:

As evidenced by my signature below, I certify that any supporting data contained herein, which is my responsibility, is both accurate and complete.

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(9) Contracting Officer's certification that the justification is accurate and complete:

As evidenced by my signature below, I certify that the justification is accurate and complete to the best of my knowledge and belief.

(10) Approving Official's determination that one of the circumstances in [FAR 16.505\(b\)\(2\)\(i\)](#) applies to the order.

As evidenced by my signature below, I hereby determine that the fair opportunity exception checked on page 1 applies.

Date		Signature
Date		
Date		
05 Feb 2026		
Date		
Date		
10 Mar 2026		

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Instructions for Completing the Template IAW FAR 16.505(b)(2)(ii)(B)

- (2) State whether the action is a new order or a modification to an existing order. Identify the basic multiple award contract number and the order number for the current action. Also identify the type of the order/line items on the order (e.g., Firm Fixed price, Cost Plus Fixed Fee, etc.).
- (3) Specifically describe the supplies/services to be acquired including the price/cost and quantity of each item in the order and the total estimated value of the order. For services, state whether services are performance-based, and if not, provide rationale for not being performance based. State the delivery/performance schedule/period for the items under the order. Explain how the requirement/order fits under the scope of the basic multiple award contracts. (Note: The Contracting Officer must ensure that the order is issued within the period of performance and within the maximum value of the contract).
- (4) Include the appropriate exception from FAR 16.505 (b)(2) and the supporting rationale. FAR 16.505(b)(1)(i) requires the Contracting Officer to provide each awardee under a multiple award contract, a fair opportunity to be considered for each order exceeding \$3,000 unless a statutory exception applies. The specific exception that precludes the fair opportunity process for this acquisition is FAR 16.505(b)(2)(i)() [Insert A, B, C, D, or E]. If a brand name product description is being justified, use this section to explain why the particular brand name, product, or feature is essential to the Government's requirements and why other companies' similar products/services do not meet, or cannot be modified to meet, the agency's needs.

FAR 16.505(b)(2)(i)(A): "The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays". When using this exception provide a detailed justification with supporting documentation that explains the exact urgency of the requirement and the mission impact if awarded to any other contractor. The user/customer typically provides this supporting information. Recommend attaching supporting documentation to the back of the document. General statements of urgency are not acceptable.

FAR 16.505(b)(2)(i)(B): "Only one awardee is capable of providing the supplies or services required at the level at the level of quality required because the supplies or services ordered are unique or highly specialized". When using this exception provide a detailed justification, with supporting documentation, as evidence of the "unique or highly specialized" nature of the procurement. The user/customer typically provides this supporting information. Supporting documentation may be attached to the back of the document. General statements are not acceptable.

FAR 16.505(b)(2)(i)(C): "The order must be issued on a sole-source basis in the interest of economy and efficiency as a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order". When using this exception provide information on the previously competed order under this contract and detail the economies and efficiencies that will be obtained by going sole source for the follow-on order. The user/customer typically provides this supporting information. General statements are not acceptable.

FAR 16.505(b)(2)(i)(D): "It is necessary to place an order to satisfy a minimum guarantee."

FAR 16.505(b)(2)(i)(E): "For orders exceeding the simplified acquisition threshold, a statute expressly authorizes or requires that the purchase be made from a specified source."

Discuss the market research that was conducted by the user/technical team/contracting officer among the supplies/services of all awardees that resulted in the conclusion that a fair opportunity exception applied. The narrative in this section should provide a high level of confidence that the requirements of FAR 16.505(b)(1) and DFARS 216.505-70 could not be met. If no market research was conducted, state so and provide the rationale. If any other awardee expressed interest in fulfilling the requirement, but was not considered a potential source, explain why that awardee cannot provide the required supplies/perform the service.

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If the use of a brand name purchase description is being justified, the market research should include an analysis of any industry proposed alternative products or approaches to meeting the requirements. Additionally, the Government's efforts to identify as many potential sources as practicable offering the required brand name item(s) should be addressed.

(5) This paragraph needs to be tailored based on the types of CLINs in the order and the pricing arrangements on the basic multiple award contract. If the contract did not establish the price for the supply or service, the Contracting Officer must establish prices for each order IAW [FAR 15.4](#). The paragraph needs to describe the steps that will ensure that the prices/estimated cost of the order will be fair and reasonable. For example, even if firm-fixed prices were obtained under adequate price competition in the award of the multiple award contract, the Contracting Officer still needs to consider market conditions and other factors that may have changed since contract award and explain the basis in the determination that prices/costs are fair and reasonable prior to award of the order.

(6) Provide any other facts supporting the use of exceptions to the fair opportunity process.

(7) Include a statement of the actions, if any, to be taken to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made. If no actions are planned, so state and provide reasons.